

RESOLUTION OF RIGHTS PROCEDURE

The procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), have been carried out, and the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) sent an email to VODAFONE ESPAÑA, S.A.U. (hereinafter, the respondent) on December 15, 2022, requesting the rectification of his personal data so that "(...) they are immediately dissociated from the company Reciclajes Recicast S.L. (...) since they have had no relationship since August 19, 2021."

The respondent replied indicating that they had verified in their systems and confirmed that it was a company, and that the claimant should contact the respondent through the business channel, not through the channel for individual customers.

The claimant states that he receives calls and messages from the respondent, demanding payment for outstanding invoices from October, November, and December 2022, from a company, Reciclajes Recicast. He indicates that the invoices do not correspond to him as the company was sold in August 2021, changing the phone numbers, and having no relationship whatsoever with the respondent. He requests that his personal data be dissociated from the phone regarding which the invoices are claimed and from the associated company.

Along with his complaint, he provides the deed of sale of the company from 2021 and an email addressed to Vodafone, dated December 15, 2022, in which he requests the dissociation of the claimant's data from the company, and a response dated December 22, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicates that, once the claimant's request was received, they proceeded to respond to him, as evidenced by the documentation submitted along with the complaint, mistakenly assessing that the request referred to a procedure for a legal entity, therefore the requested management could not be carried out through that channel.

"In any case, a new communication has been sent to the claimant, in which the actions taken to resolve the reported incident and to ensure the attention to his request and the consequent dissociation of the claimant's contact phone from the contact data of the entity RECICLAJES RECICAST, S.L. are communicated. A copy of the communication sent is attached as Document number 1."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding the claimant's requests to be satisfied, as there is no documentary evidence that such communication had been sent to the claimant, nor of its receipt.

Consequently, on April 23, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present any allegations they deemed appropriate, not making any allegations within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish

Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the event that they have designated a...

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Data protection delegate, Article 39 of the GDPR assigns to this individual the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim for the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the claim was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the claimant.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on April 23, 2023, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the claim submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, objection, the right to limit processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of their rights by the data subject, which shall be free of charge

(without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to rectification

Article 16 of the GDPR, which regulates the right to rectify inaccurate personal data, establishes the following:

“The data subject shall have the right to obtain from the data controller, without undue delay, the rectification of inaccurate personal data concerning them. Taking into account the purposes of the processing, the data subject shall have the right to have incomplete personal data completed, including by means of a supplementary statement.”

V

Conclusion

During the processing of this procedure, the respondent entity has informed this Agency that it has sent a communication to the claimant, but it does not provide evidence of having sent it or of its receipt.

The aforementioned regulations do not allow for the request to be disregarded as if it had not been made, leaving it without the response that the data controllers are obliged to issue, even in cases where there are no data in the files or even in those cases where the request does not meet the established requirements, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the data controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Consequently, it is appropriate to uphold the claim that gave rise to this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Article 16 of the GDPR have been infringed and to urge VODAFONE ESPAÑA,

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S.A.U. with NIF B.B.B., so that, within ten working days following the notification of this resolution, it sends to the claiming party a certification addressing the requested right or denying it with justification, indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription under Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file

an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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